

**SUBSTITUTE FOR
HOUSE BILL NO. 5150**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 16344, 18701, 18703, 18707, and 18709 (MCL
333.16344, 333.18701, 333.18703, 333.18707, and 333.18709), as
added by 2004 PA 3, and by adding sections 18710 and 18712.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 16344. Fees for an individual licensed or seeking
2 licensure ~~as a~~ **to engage in the practice of** respiratory therapist
3 **care** under part 187 are as follows:

4 (a) Application processing fee	\$ 20.00
5 (b) License fee, per year	75.00
6 (c) Temporary license	75.00



(d) Limited license**27.50**

Sec. 18701. (1) As used in this part:

(a) "Health facility" means a health facility or agency licensed under article 17.

(b) "Medical director" means a physician who is responsible for the quality, safety, appropriateness, and effectiveness of the respiratory care services provided by a respiratory therapist, who assists in quality monitoring, protocol development, and competency validation, and who meets all of the following:

(i) Is the medical director of an inpatient or outpatient respiratory care service or department within a health facility, or of a home care agency, durable medical equipment company, or educational program.

(ii) Has special interest and knowledge in the diagnosis and treatment of cardiopulmonary disorders and diseases.

(iii) Is qualified by training or experience, or both, in the management of acute and chronic cardiopulmonary disorders and diseases.

(c) "Other qualified practitioner" means any of the following:

(i) An advanced practice registered nurse as that term is defined in section 17201 who is acting under the delegation of a physician.

(ii) A physician's assistant who is licensed under part 170 or part 175.

(d) ~~(e)~~ "Physician" means that term as defined in sections 17001 and 17501.

(e) ~~(d)~~ "Practice of respiratory care" means the provision of respiratory care services. ~~Practice of respiratory care may be provided by an inpatient or outpatient service or department within~~



~~a health facility, by a home care agency or durable medical equipment company, or by an educational program.~~

(f) ~~(e)~~ "Respiratory care services" means preventative services, diagnostic services, therapeutic services, and rehabilitative services under the written, verbal, or telecommunicated order of a physician **or other qualified practitioner** to an individual with a disorder, disease, or abnormality of the cardiopulmonary system ~~as diagnosed by a physician. Respiratory care services involve, but are not limited to, observing, and providing or offering to provide a service involving the evaluation of cardiopulmonary function, the treatment of cardiopulmonary impairment, the assessment of treatment effectiveness, and the care of patients with deficiencies and abnormalities associated with the cardiopulmonary system.~~ Respiratory care services include, but are not limited to, the following:

(i) **Observing**, assessing, and monitoring signs and symptoms, reactions, general behavior, and ~~general physical~~ **clinical** response of individuals to respiratory care, ~~services, including determination of~~ **determining** whether those signs, symptoms, reactions, behaviors, or ~~general physical~~ **clinical** response exhibit abnormal characteristics. ~~;~~ the

(ii) **The administration, monitoring, documentation, and instruction** of pharmacological, diagnostic, and therapeutic agents related to respiratory care. ~~services; the collection of blood specimens and other bodily fluids and tissues for, and the performance of, cardiopulmonary diagnostic testing procedures including, but not limited to, blood gas analysis;~~

(iii) **Obtaining, analyzing, testing, measuring, and monitoring**



1 blood and gas samples in the determination of cardiopulmonary
 2 parameters and related physiologic data, including, but not limited
 3 to, flows, pressures, and volumes, and the use of equipment
 4 employed for the purposes described in this subparagraph.

5 (iv) The development, implementation, and modification of
 6 respiratory care treatment plans based on assessed abnormalities of
 7 the cardiopulmonary system, respiratory care protocols, clinical
 8 pathways, referrals, and written, verbal, or telecommunicated
 9 orders of a physician or other qualified practitioner. ÷
 10 application,

11 (v) The application, operation, and management of mechanical
 12 ventilatory support and other means of life support. ; and the

13 (vi) Performing cardiopulmonary resuscitation, inserting and
 14 maintaining artificial airways and arterial and venous lines, and
 15 hemodynamic monitoring.

16 (vii) The initiation of emergency procedures under the rules
 17 promulgated by the board under this part.

18 (viii) Performing therapeutic bronchoscopy, diagnostic
 19 bronchoscopy, hyperbaric oxygen therapy, electrophysiological
 20 monitoring, and extracorporeal membrane oxygenation.

21 (g) ~~(f)~~ "Respiratory therapist" and "respiratory care
 22 practitioner" mean an individual engaged **who is licensed under this**
 23 **article to engage** in the practice of respiratory care. ~~and who is~~
 24 ~~responsible for providing respiratory care services and who is~~
 25 ~~licensed under this article as a respiratory therapist or~~
 26 ~~respiratory care practitioner.~~

27 (2) In addition to the definitions in this part, article 1
 28 contains general definitions and principles of construction
 29 applicable to all articles in this code and part 161 contains



1 definitions applicable to this part.

2 Sec. 18703. ~~Beginning the effective date of the amendatory act~~
3 ~~that added this part, an~~ An individual shall not use the titles
4 "respiratory therapist", "respiratory care practitioner", "licensed
5 respiratory therapist", "licensed respiratory care practitioner",
6 "r.t.", "r.c.p.", "l.r.t.", "l.r.c.p.", or similar words that
7 indicate the individual is a respiratory therapist unless the
8 individual is licensed under this article as a respiratory
9 therapist or respiratory care practitioner.

10 Sec. 18707. (1) An individual shall not engage in the practice
11 of respiratory care ~~or provide or offer to provide respiratory care~~
12 ~~services unless~~ **the individual is** licensed under this part.

13 (2) Subsection (1) does not prevent any of the following:

14 (a) An individual licensed under any other part or act from
15 performing activities that are considered **the practice of**
16 respiratory care ~~services~~ if those activities are within the
17 individual's scope of practice and if the individual does not use
18 the titles protected under section 18703.

19 (b) An individual not licensed under this part from performing
20 activities that are considered **the practice of** respiratory care
21 ~~services~~ while under the supervision of an individual who is
22 licensed under this part as a respiratory therapist or respiratory
23 care practitioner, if the individual does not use the titles
24 protected under section 18703.

25 (c) An individual not licensed under this part from performing
26 activities that are considered diagnostic services if the
27 individual possesses a level of training approved by the board, has
28 successfully passed a credentialing examination approved by the
29 **department, in consultation with the** board, and if the individual



1 does not use the titles protected under section 18703.

2 (d) The practice of respiratory care ~~which-that~~ is an integral
3 part of a program of study by ~~students-a~~ **student** enrolled in an
4 accredited respiratory therapist educational program approved by
5 the board, ~~provided that they are-if the student is~~ identified as a
6 student and ~~provide~~ **provides** respiratory care services only while
7 under the supervision of a ~~licensed~~-respiratory therapist or
8 respiratory care practitioner.

9 (e) Self-care by a patient or uncompensated care by a friend
10 or family member who does not represent or hold ~~himself or herself~~
11 **themselves** out to be a ~~licensed~~-respiratory therapist or respiratory
12 care practitioner.

13 Sec. 18709. (1) The department, **in consultation with the**
14 **board**, shall promulgate rules under section 16145 as necessary or
15 appropriate to fulfill its functions under this article. In
16 promulgating rules to establish requirements for licensure, ~~under~~
17 ~~section 16145,~~ the department, **in consultation with the board**,
18 shall adopt all of the following requirements:

19 (a) Successful completion of an accredited respiratory
20 therapist ~~training-educational~~ program approved by the department
21 **in consultation with the board**.

22 (b) Having at least a 2-year ~~associate's~~ **associate** degree from
23 an accredited college or university approved by the department **in**
24 **consultation with the board**.

25 (c) Having the credential conferred by the ~~national board~~
26 **National Board** for ~~respiratory care~~ **Respiratory Care** or its
27 successor organization as a respiratory therapist or its successor
28 credential, as approved by the department **in consultation with the**
29 **board**.



1 ~~(2) The department shall issue~~ **An individual must be granted a**
 2 license as a respiratory therapist ~~to an individual who had either~~
 3 ~~of the credentials if the individual meets any of the following~~
 4 conditions:

5 (a) Until 1 year after the effective date of the amendatory
 6 act that added subdivision (b), the individual holds a current and
 7 **active credential** as a ~~registered respiratory therapist or~~
 8 certified respiratory therapist ~~, or their predecessor credentials,~~
 9 ~~conferred by~~ **from the national board National Board** for respiratory
 10 ~~care, Respiratory Care or its successor, or its predecessor~~
 11 ~~organization, on or before the effective date of this part, and who~~
 12 ~~applies for licensure as a respiratory therapist within 1 year~~
 13 ~~after the effective date of this part.~~ **an equivalent credential as**
 14 determined by the department in consultation with the board.

15 (b) Beginning 1 year after the effective date of the
 16 amendatory act that added this subdivision, the individual holds a
 17 current and active credential as a registered respiratory therapist
 18 from the National Board for Respiratory Care or its successor, or
 19 an equivalent credential as determined by the department in
 20 consultation with the board.

21 ~~(3) The department shall issue a license as a respiratory~~
 22 ~~therapist to an individual who is a holder of a temporary license~~
 23 ~~as a respiratory therapist if a holder of a temporary license meets~~
 24 ~~all of the following requirements:~~

25 ~~(a) Applies for licensure as a respiratory therapist prior to~~
 26 ~~the expiration of his or her temporary license as prescribed in~~
 27 ~~section 18711(2).~~

28 ~~(b) Provides proof to the department that he or she has~~
 29 ~~successfully completed the national credentialing exam by the~~



1 ~~national board for respiratory care or its successor organization,~~
2 ~~as approved by the department.~~

3 ~~(4) The department may utilize the standards contained in the~~
4 ~~clinical practice guidelines issued by the American association of~~
5 ~~respiratory care that are in effect on the effective date of this~~
6 ~~part as interim standards, which are adopted by reference, until~~
7 ~~rules are promulgated under subsection (1).~~

8 **Sec. 18710. (1) Beginning 1 year after the effective date of**
9 **the amendatory act that added this section, an individual who, in**
10 **addition to meeting the requirements of part 161, meets both of the**
11 **following requirements must be granted a limited license:**

12 **(a) Is enrolled and in good standing in a respiratory**
13 **therapist educational program that meets the requirements described**
14 **in section 18709(1) or is a graduate of a respiratory therapist**
15 **educational program that meets the requirements described in**
16 **section 18709(1).**

17 **(b) Provides a verification of education form that is**
18 **completed by the respiratory therapist educational program**
19 **described in subdivision (a) to the department.**

20 **(2) All of the following apply to an individual who is granted**
21 **a limited license under this section:**

22 **(a) The individual may perform a respiratory care service only**
23 **if all of the following are met:**

24 **(i) The individual has successfully completed a course in the**
25 **educational program described in subsection (1) covering the**
26 **respiratory care service and the successful completion of the**
27 **course is documented in the verification of education form**
28 **described in subsection (1).**

29 **(ii) The respiratory care service is being provided to a**



1 patient who is an adult and who is not a critical care patient.

2 (iii) The individual is acting under the supervision of a
3 respiratory therapist.

4 (b) The individual shall meet at least 1 time each working
5 day, in person, with the respiratory therapist described in
6 subdivision (a) to review the clinical activities of the
7 individual. The respiratory therapist described in subdivision (a)
8 shall provide any redirection or clinical correction during the
9 meeting described in this subdivision and shall review an entry by
10 the individual in a patient's medical record not more than 7 days
11 after the individual makes the entry.

12 (3) A limited license granted under this section expires at
13 the earliest of the following times:

14 (a) One year after the date the limited license is granted.

15 (b) The date the individual becomes licensed under section
16 18709(2)(b).

17 (4) A limited license granted under this section may be
18 renewed once.

19 (5) This section does not require a student meeting the
20 requirements described in section 18707(2)(d) to obtain a limited
21 license under this section.

22 Sec. 18712. (1) Beginning on the effective date prescribed by
23 the department by rule, in addition to the requirements of part
24 161, a licensee seeking renewal of the licensee's license shall
25 furnish the department with satisfactory evidence that, during the
26 licensing period immediately preceding the licensee's application
27 for renewal, the licensee has met 1 of the following conditions:

28 (a) Subject to subsection (3), if the licensee is licensed
29 under section 18709, the licensee completed at least 15 clock hours



1 of continuing education courses that are designed to further
2 educate licensees, as approved by the board.

3 (b) The licensee has successfully passed 1 of the following:

4 (i) A written professional examination administered by the
5 National Board for Respiratory Care, including, but not limited to,
6 the registry examination for advanced respiratory therapists, the
7 recredentialing examination for certified respiratory therapists,
8 the pulmonary function technology examination, the neonatal or
9 pediatric specialty examination, the sleep disorder specialty
10 examination, or an equivalent written professional examination as
11 determined by the board.

12 (ii) The registered polysomnographic technologist examination
13 administered by the Board of Registered Polysomnographic
14 Technologists, the certified asthma education examination
15 administered by the National Asthma Educator Certification Board,
16 or an equivalent examination as determined by the board.

17 (2) As required under section 16204, each applicant for
18 license renewal shall complete as part of the requirements under
19 subsection (1) an appropriate number of hours or courses in pain
20 and symptom management, as prescribed by rule.

21 (3) None of the following meet the continuing education
22 requirement described in subsection (1):

23 (a) A course on basic life support or cardiopulmonary
24 resuscitation.

25 (b) An educational activity if the educational activity has
26 the identical objective and content as another educational activity
27 used for continuing education during the same licensing period
28 immediately preceding the licensee's application for renewal.

29 (c) An employer-specific orientation or in-service program



1 that does not significantly enhance the practice of respiratory
2 care.

3 (d) Self-directed independent study, including, but not
4 limited to, reading a text or journal article that has not been
5 approved by the board.

6 (e) Participation in clinical practice or research if it is
7 not part of a continuing education activity approved by the board.

8 (f) A personal development activity that is not taken for the
9 purposes of meeting a continuing education requirement.

10 (g) A professional meeting or convention unless the meeting or
11 convention or a portion of the meeting or convention is a
12 continuing education activity approved by the board.

13 (h) Community service and volunteer practice.

14 (i) Membership in a professional organization.

15 (j) A contact hour if the licensee is required to complete the
16 contact hour by rule and the contact hour would result in the
17 licensee exceeding the clock hours prescribed in this section.

18 (4) A licensee shall maintain evidence of the licensee's
19 compliance with the requirements of this section for a period of 4
20 years after the date of the licensee's application for renewal,
21 during which time the licensee may be required to submit the
22 evidence for auditing purposes.

23 (5) The department shall promulgate rules to implement this
24 section by 1 year after the effective date of the amendatory act
25 that added this section.

26 (6) As used in this section:

27 (a) "Clock hour" means a period of 50 to 60 minutes.

28 (b) "Contact hour" means a period of 50 to 60 minutes of
29 planned classroom, clinical, or provider-directed independent



1 **study.**

2 Enacting section 1. This amendatory act takes effect 90 days
3 after the date it is enacted into law.